

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

AS AMENDED

By: Caldwell (Chad) and Lepak
of the House

Pugh of the Senate

```
[ schools - instructional expenditures - exclusions -
bond proposal - applicability - bond guarantee
application - effective date -
```

SECTION 1. AMENDATORY 70 O.S. 2021, Section 5-135.4, is amended to read as follows:

Section 5-135.4. A. This section shall be known and may be cited as the "School District Transparency Act".

B. The State Department of Education shall make school district and school site expenditure data available on its website. Data shall be made available in an open-structured data format that may be downloaded by the public and that allows the user to systematically sort, search, and access all data without any fee or charge for access. Prior to the beginning of the 2019-2020 school year, if a school district has a website, the district shall provide

1 a link on its home page to the State Department of Education's
2 Oklahoma Cost Accounting System and School District Financial
3 Information website, or the district shall provide the information
4 required by subsection C of this section within one click of the
5 home page of the school district's website.

6 C. The website shall provide information on school district and
7 school site expenditures of state, federal, and local funds, whether
8 appropriated or nonappropriated, excluding payments of voluntary
9 payroll deductions for employees to receiving parties. The website
10 shall further provide information, including, but not limited to,
11 the following:

12 1. Identification of the school district;

13 2. The Oklahoma Cost Accounting System (OCAS) code designation
14 for each expenditure;

15 3. The name and principal location of the entity or recipient
16 of the funds, excluding release of information relating to an
17 individual's place of residence and release of information
18 prohibited by subsection D of Section 24A.7 of Title 51 of the
19 Oklahoma Statutes or by federal law relating to privacy rights;

20 4. The amount of funds expended;

21 5. The type of transaction;

22 6. A descriptive purpose of the funding action or expenditure;
23
24

1 7. The budgeted and audited actual expenditure figures for each
2 fiscal year, ensuring each set of figures can be identified as
3 budgeted or audited figures;

4 8. The per-pupil expenditure as defined in Section 1-124 of
5 this title; and

6 9. The total compensation package of the superintendent as
7 defined by the requirements of the OCAS including a listing of the
8 base salary, insurance, retirement and other fringe benefits
9 including exempted nonadministrative services such as teaching in
10 the classroom or serving as a principal, counselor or library media
11 specialist pursuant to subsection E of Section 18-124 of this title.

12 D. The Department shall make the data available on its website
13 within one hundred twenty (120) days of transmission of the
14 expenditures to the Department by the school district.

15 E. School districts shall provide information requested by the
16 Department to accomplish the purposes of this section.

17 F. If a school district maintains a website, the district shall
18 provide the information required in subsection C of this section in
19 the manner prescribed in subsection B of this section on the
20 district website.

21 G. In addition to the requirements of this section, if a school
22 district maintains a website, the district shall provide the
23 percentage of total district expenditures that were allocated to
24 instructional expenses in the last fiscal year on the home page of

1 its website. "Instructional expenditures" means instruction
2 expenditures as defined by the National Center for Education
3 Statistics, a federal entity within the United States Department of
4 Education. If the National Center for Education Statistics ceases
5 to exist, then instructional expenditures shall have the same
6 meaning as provided by an equivalent entity to the National Center
7 for Education Statistics. Instructional expenditures shall not
8 include administrative services as defined in Section 18-124 of this
9 title or for equipment or materials for administrative staff.

10 H. Nothing in this section shall require the disclosure of
11 information which is required to be kept confidential by state or
12 federal law.

13 ~~H.~~ I. The disclosure of information required by this section
14 shall create no liability whatsoever, civil or criminal, to the
15 State of Oklahoma, the State Department of Education, school
16 districts, or any employee thereof for disclosure of required
17 information or for any error or omission in the disclosure.

18 ~~I.~~ J. The Department shall undertake activities annually to
19 inform parents, schools and other stakeholders about the
20 availability of school district and school site expenditure data on
21 its website and how to use the website.

22 SECTION 2. AMENDATORY Section 1, Chapter 157, O.S.L.
23 2023 (70 O.S. Supp. 2025, Section 15-110), is amended to read as
24 follows:

1 Section 15-110. A. When a school district board of education
2 calls an election for the purpose of issuing bonds pursuant to
3 Section 15-102 of ~~Title 70 of the Oklahoma Statutes~~ this title, the
4 school district shall, at least thirty (30) days prior to the
5 election, post on its website a copy of the bond proposal, including
6 each project to be funded by the bond proceeds, a description of
7 each project, ~~and~~ the estimated cost for each project, and the
8 percentage of total district expenditures that were allocated to
9 instructional expenses in the last fiscal year. "Instructional
10 expenditures" means instruction expenditures as defined by the
11 National Center for Education Statistics, a federal entity within
12 the United States Department of Education. If the National Center
13 for Education Statistics ceases to exist, then instructional
14 expenditures shall have the same meaning as provided by an
15 equivalent entity to the National Center for Education Statistics.
16 Instructional expenditures shall not include administrative services
17 as defined in Section 18-124 of this title or for equipment or
18 materials for administrative staff.

19 B. If electors approve the issuing of bonds at an election, the
20 school district shall continue to post on its website the bond
21 information required by subsection A of this section for the
22 duration of the bond and one (1) year after completion of all bond
23 projects. The information posted on the school district website
24 shall also include updates when there is a material change in the

1 scope of the projects and their purpose as stated at the time the
2 board of education calls the bond election. The updated information
3 shall be posted online within thirty (30) days following approval of
4 the project changes by the board of education.

5 C. ~~This act~~ The provisions of this section, excluding the
6 instructional expenses requirement, shall not apply to any bond
7 projects approved by electors prior to ~~the effective date of this~~
8 ~~act~~ November 1, 2023. The instructional expenses requirement
9 provided in this section shall not apply to any bond projects
10 approved by electors prior to the effective date of this act.

11 SECTION 3. AMENDATORY 70 O.S. 2021, Section 15-204, is
12 amended to read as follows:

13 Section 15-204. A school district seeking the guarantee of
14 eligible bonds shall apply to the Commissioners on an application
15 which ~~must~~ shall include:

16 1. The name of the school district and the principal amount of
17 the bonds to be issued;

18 2. The maturity schedule, estimated interest rate and date of
19 the bonds; ~~and~~

20 3. The percentage of total district expenditures that were
21 allocated to instructional expenses in the last fiscal year.

22 "Instructional expenditures" means instruction expenditures as
23 defined by the National Center for Education Statistics, a federal
24 entity within the United States Department of Education. If the

1 National Center for Education Statistics ceases to exist, then
2 instructional expenditures shall have the same meaning as provided
3 by an equivalent entity to the National Center for Education
4 Statistics. Instructional expenditures shall not include
5 administrative services as defined in Section 18-124 of this title
6 or for equipment or materials for administrative staff; and

7 4. Any other information as deemed necessary and appropriate by
8 the Commissioners of the Land Office.

9 The application must be accompanied by a fee set by the
10 Commissioners in an amount to cover costs of administering the
11 guarantee program. The Commissioners and the State Bond Advisor
12 shall enter into an interagency agreement in order to administer
13 their responsibilities pursuant to the provisions of this act.

14 From the fees collected, the Commissioners shall enter into a
15 cooperative agreement with the State Bond Advisor to defray any
16 administrative costs of his or her office in carrying out the
17 provisions of this act.

18 SECTION 4. This act shall become effective July 1, 2026.

19 SECTION 5. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

23 COMMITTEE REPORT BY: COMMITTEE ON RULES
24 April 23, 2026 - DO PASS AS AMENDED